

General Docket
United States Court of Appeals for the Eleventh Circuit

Court of Appeals Docket #: 20-12897
Nature of Suit: 3440 Other Civil Rights
Deepgulf, Inc., et al v. Marc Moszkowski
Appeal From: Northern District of Florida
Fee Status: Fee Paid

Docketed: 08/03/2020
Termed: 04/21/2021

Case Type Information:

- 1) Private Civil
- 2) Federal Question
- 3) -

Originating Court Information:

District: 1129-3 : [3:18-cv-01466-TKW-MJF](#)
Court Reporter: Megan Hague
Court Reporter: Julie A. Wycoff
Civil Proceeding: Kent Wetherell, U.S. District Judge
Secondary Judge: Michael J. Frank, U.S. Magistrate Judge
Date Filed: 06/25/2018
Date NOA Filed:
07/31/2020

Prior Cases:

None

Current Cases:

None

DEEPGULF, INC.

Plaintiff - Appellant

Braden Ball, Jr.
Direct: 850-432-9818
[COR LD NTC Retained]
Braden K. Ball, Jr., PA
40 PALAFOX PL STE 300
PENSACOLA, FL 32502

TOKE OIL AND GAS S A

Plaintiff - Appellant

Braden Ball, Jr.
Direct: 850-432-9818
[COR LD NTC Retained]
(see above)

versus

MARC M. MOSZKOWSKI

Defendant - Appellee

Marc M. Moszkowski
Direct: 850 316 8462
[NTC Pro Se]
Le Verdos
Chateaudouble, Var, 83300
France

DEEPGULF, INC.,
TOKE OIL AND GAS SA,

Plaintiffs - Counter Defendants - Appellants,

versus

MARC M. MOSZKOWSKI,

Defendant - Counter Claimant - Appellee.

08/03/2020	☐ 	CIVIL APPEAL DOCKETED. Notice of appeal filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A on 08/31/2020. Fee Status: Fee Paid. Awaiting Appellant's Certificate of Interested Persons due on or before 08/17/2020 as to Appellant Deepgulf, Inc. [Entered: 08/07/2020 10:23 AM]
08/10/2020	☐ 	APPEARANCE of Counsel Form filed by [20-12897] (ECF: Braden Ball) [Entered: 08/10/2020 03:01 PM]
08/10/2020	☐ 	Civil Appeal Statement filed by Attorney Braden Ball, Jr. for Appellants Deepgulf, Inc. and Toke Oil and Gas S A. [20-12897] (ECF: Braden Ball) [Entered: 08/10/2020 03:02 PM]
08/10/2020	☐ 	TRANSCRIPT INFORMATION FORM SUBMITTED by Attorney Braden Ball, Jr. for Appellants Deepgulf, Inc. and Toke Oil and Gas S A. No transcript is required for appeal purposes. [20-12897] (ECF: Braden Ball) [Entered: 08/10/2020 03:03 PM]
08/10/2020	☐ 	TRANSCRIPT INFORMATION form filed by Attorney Braden Ball, Jr. for Appellants Deepgulf, Inc. and Toke Oil and Gas S A. No transcript is required for appeal purposes. [Entered: 08/10/2020 05:42 PM]
08/11/2020	☐ 	Briefing Notice issued to Appellants Deepgulf, Inc. and Toke Oil and Gas S A. The appellant's brief is due on or before 09/14/2020. The appendix is due no later than 7 days from the filing of the appellant's brief. [Entered: 08/11/2020 09:58 AM]
08/20/2020	☐	NOTICE OF CIP FILING DEFICIENCY to Braden Ball, Jr. for Deepgulf, Inc. and Toke Oil and Gas S A. You are receiving this notice because you have not completed the Web-Based Stock Ticker Symbol CIP via the court's public web-page and have not filed the CIP via the electronic filing system (CM/ECF). Failure to comply with 11th Cir. Rules 26.1-1 through 26.1-4 may result in dismissal of the case or appeal under 11th Cir. R. 42-1(b), return of deficient documents without action, or other sanctions on counsel, the party, or both. [Entered: 08/20/2020 10:30 AM]
09/03/2020	☐	Over the phone extension granted by clerk as to Attorney Braden Ball, Jr. for Appellants Deepgulf, Inc. and Toke Oil and Gas S A. Appellants brief due on 09/28/2020 as to Appellant Deepgulf, Inc.. Appendix due on 10/05/2020 as to Appellant Deepgulf, Inc.. [Entered: 09/03/2020 09:32 AM]
09/03/2020	☐ 	Certificate of Interested Persons and Corporate Disclosure Statement filed by Attorney Braden Ball, Jr. for Appellants Deepgulf, Inc. and Toke Oil and Gas S A. On the same day the CIP is served, the party filing it must also complete the court's web-based stock ticker symbol certificate at the link here http://www.ca11.uscourts.gov/web-based-cip or on the court's website. See 11th Cir. R. 26.1-2(b). [20-12897] (ECF: Braden Ball) [Entered: 09/03/2020 10:53 AM]
09/28/2020	☐ 	Appellant's brief filed by Deepgulf, Inc. and Toke Oil and Gas S A. [20-12897] (ECF: Braden Ball) [Entered: 09/28/2020 03:35 PM]
09/28/2020	☐ 	Over the phone extension granted by clerk as to Marc M. Moszkowski. Appellee's Brief is due on 11/25/2020. [Entered: 09/28/2020 04:41 PM]
09/30/2020	☐	Received paper copies of EBrief filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A. [Entered: 10/02/2020 04:41 PM]
10/05/2020	☐ 	Appendix filed [3 VOLUMES] by Appellants Deepgulf, Inc. and Toke Oil and Gas S A. [20-12897] (ECF: Braden Ball) [Entered: 10/05/2020 10:09 AM]
10/07/2020	☐	Received paper copies of EAppendix filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A. 3 VOLUMES - 2 COPIES [Entered: 10/09/2020 10:11 AM]
10/13/2020	☐ 	JURISDICTIONAL QUESTION issued as to Deepgulf, Inc. and Toke Oil and Gas S A. [Entered: 10/13/2020 04:39 PM]
10/27/2020	☐ 	<i>Response to Jurisdictional Question with incorporated motion to dismiss appeal for lack of appellate jurisdiction, for attorney's fees or costs, to REMAND this appeal in full to the District Court filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A.</i> [20-12897] (ECF: Braden Ball) [Entered: 10/27/2020 05:12 PM]
10/27/2020	☐ 	Response to Jurisdictional Question filed by Appellee Marc M. Moszkowski [20-12897] (ECF: Marc Moszkowski) [Entered: 10/27/2020 08:05 PM]
11/25/2020	☐ 	Appellee's Brief filed by Appellee Marc M. Moszkowski. [20-12897] (ECF: Marc Moszkowski) [Entered: 11/25/2020 01:37 PM]
12/01/2020	☐	Received paper copies of EBrief filed by Appellee Marc M. Moszkowski. [Entered: 12/02/2020 11:58 AM]
12/02/2020	☐ 	Supplemental Appendix [4 VOLUMES] filed by Appellee Marc M. Moszkowski. [20-12897] (ECF: Marc Moszkowski) [Entered: 12/02/2020 08:32 AM]
12/04/2020	☐	Received paper copies of EAppendix filed by Appellee Marc M. Moszkowski. 4 VOLUMES -2 COPIES -- [Edited 12/09/2020 by GAF] [Entered: 12/08/2020 04:00 PM]
12/16/2020		Reply Brief filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A. [20-12897] (ECF: Braden Ball)



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[Entered: 12/16/2020 10:26 AM]

12/18/2020



Received paper copies of EBrief filed by Appellants Deepgulf, Inc. and Toke Oil and Gas S A. [Entered: 12/22/2020 12:26 PM]

01/04/2021



3 pg, 21.61 KB

ORDER: Upon review of the parties' responses to our jurisdictional question, we REMAND this case to the district court for the limited purpose of determining whether it had subject matter jurisdiction in the first instance. Because the relief Appellants seek in their response to our jurisdictional question is premised on the district court's jurisdictional finding, we DENY their motion without prejudice to renewal after the district court has made its determination on limited remand. [\[9223172-2\]](#) [\[9223172-3\]](#) [\[9223172-4\]](#) CRW and RSR (See attached order for complete text) [Entered: 01/04/2021 02:43 PM]

02/17/2021



7 pg, 780.07 KB

USDC order on limited remand as to Appellant Deepgulf, Inc. filed on 02/16/2021. Docket Entry 183. [Entered: 02/17/2021 02:21 PM]

04/21/2021



2 pg, 164.28 KB

ORDER: We hereby VACATE the judgment in this case and REMAND with instructions for the district court to remand the case to state court because, as the district court determined, it lacked alienage jurisdiction over the case. See 28 U.S.C. § 1332(a)(2); *Lincoln Prop. Co. v. Roche*, 546 U.S. 81, 89 (2005); *Iraola & Cia, S.A. v. Kimberly-Clark Corp.*, 232 F.3d 854, 860 (11th Cir. 2000); *Caron v. NCL (Bah.), Ltd.*, 910 F.3d 1359, 1364–65 (11th Cir. 2018). CRW, AJ and RSR [Entered: 04/21/2021 04:54 PM]